
**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

MARK V. CHEATHAM and ATASHA JOHNSON,

Summons

-against-

Plaintiffs designate New York County as the place of trial, based on the Plaintiffs' residence.

**THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. OMAR COLLADO,
the name spelled phonetically and P.O.s "JOHN
DOE" #1-3, the names being fictitious as same are
not known**

Defendants.

TO THE ABOVE DEFENDANTS:

You are hereby summoned and required to serve upon plaintiff's attorneys an answer to the complaint in this action within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
Feb. 2, 2022

ROSSI LAW PLLC
Attorney for Plaintiff
180 So. Broadway
Suite 200
White Plains, NY 10605
(914) 358-9755

Defendants' Name and Address:
City - 100 Church St., NY, NY 10007
Police - 1 Police Plaza, NY, NY

Notice: Nature of action is false arrest/battery/negligence

The Relief sought is Money damages

Upon your failure to appear, judgement will be taken against you by default in a sum within the jurisdictional limits of the Supreme Court and more than the jurisdiction of all inferior Courts.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
MARK V. CHEATHAM and ATASHA JOHNSON,

-against-

VERIFIED COMPLAINT

**THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. OMAR COLLADO,
the name spelled phonetically and P.O.s "JOHN
DOE" #1-3, the names being fictitious as same are
not known**

INDEX NO:

Defendants.

-----X
Plaintiffs, as and for their Verified Complaint, by their attorney(s), Rossi Law, PLLC,
allege the following upon information and belief;

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK
(hereinafter referred to as "CITY"), was a municipal corporation duly organized and
existing pursuant to the laws of the State of New York.
2. A notice of claim was served upon defendant, "CITY", within ninety (90) days of the
occurrence and/or accrual of the cause of action.
3. More than thirty (30) days have elapsed since presentation of said claim, and defendant,
"CITY", has failed to adjust and /or dispose of the claim presented therein.
4. This action is commenced within one year and ninety days of the date of the incident
and/or accrual of the cause of action.
5. That at all times hereinafter mentioned, defendant, "CITY", owns and maintains the
"NEW YORK CITY POLICE DEPARTMENT", (hereafter referred to "POLICE"), as a
subsidiary;
6. That at all times hereinafter mentioned, defendant, "CITY", maintains, manages, operates

- and controls the “POLICE”;
7. That at all times hereinafter mentioned, defendant P.O. OMAR COLLADO, hereafter referred to as “P.O. COLLADO”, and P.Os “JOHN DOE” #1-3 are employed by the “POLICE” of the defendant, “CITY”;
 8. At all times herein mentioned, the Plaintiffs were residents of the City of Irvington, State of New Jersey;
 9. At all times herein mentioned, Plaintiff, Mark V. Cheathem, maintained a residence at 159-64 Harlem River Drive, County, City and State of New York with his mother Martha Cheathem (who is not a party to this litigation);

FIRST CAUSE OF ACTION-FALSE IMPRISONMENT:

10. The Plaintiffs repeat and re-iterate each and every allegation of the complaint herein numbered 1-9, as though same were fully set forth herein;
11. On or about August 24, 2021 at approximately 7:30 pm of that day, Plaintiffs were lawfully in resting, on the rooftop level of 159-64 Harlem River Drive, County, City and State of New York, taking a breath of fresh air, after visiting Martha Cheathem who permanently resides in apartment 14F thereof, when members of the “POLICE” of the defendant, “CITY”, including the Defendant “P.O. COLLADO” responded to said location. Plaintiffs were lawfully at said location. The officers demanded that the Plaintiffs raise their hands, show picture ID and explain why they were on the roof. The Plaintiffs complied and explained that they had visited Plaintiff, Mark Cheathem’s mother and came to the rooftop to get some fresh air;
12. Plaintiffs were falsely imprisoned at both the scene of the occurrence and continuing thereafter at the Police Precinct located at West 147th Street and Eighth Ave (believed to

be the 28th precinct) where they remained for approximately seven (7) hours and were issued desk appearance tickets.

13. As a result of the aforementioned, the Plaintiffs suffered emotional trauma, feared for their lives, and other consequential damages.
14. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
15. The criminal action against the Plaintiffs were disposed of as follows: Dismissed 9/13/2021;
16. As a result of the foregoing, the Plaintiffs each have been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SECOND CAUSE OF ACTION-FALSE ARREST

17. Plaintiffs repeat, reiterate and re-allege the allegations contained in Paragraphs "1" through "16" herein as if more fully set forth at length:
18. The Plaintiffs were, without cause or provocation, falsely arrested.
19. As a result of the foregoing, the Plaintiffs suffered personal injury, emotional trauma, feared for their lives, and sustained other consequential damages.
20. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
21. As a result of the foregoing, the Plaintiffs each have been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

THIRD CAUSE OF ACTION-MALICIOUS PROSECUTION

22. Plaintiffs repeat, reiterate and re-allege the allegations contained in Paragraphs "1" through "21" herein as if more fully set forth at length:
23. Defendants maliciously prosecuted criminal charges against the Plaintiffs, as a proper investigation would have revealed the charges to be false and unfounded and on September 13, 2021 the charges were dismissed.
24. As a result of the foregoing, the Plaintiffs suffered personal injury, emotional trauma, feared for their lives, sustained severe and serious personal injuries and other consequential damages.
25. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
26. As a result of the foregoing, the Plaintiffs each have been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

FOURTH CAUSE OF ACTION-NEGLIGENT TREATMENT:

27. Plaintiffs repeat, reiterate and re-allege the allegations contained in Paragraphs "1" through "26" herein as if more fully set forth at length:
28. At the aforementioned time and place, the Plaintiffs were negligently treated by various police officers employed by the defendant, "CITY" and they were acting within the scope of their authority and with the knowledge and the approval of their employers.
29. As a result of the foregoing, the plaintiffs suffered personal injury, emotional trauma, feared for their lives, and sustained other consequential damages.

30. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
31. As a result of the foregoing, the Plaintiffs each have been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

FIFTH CAUSE OF ACTION-BATTERY

32. Plaintiffs repeats, reiterate and re-allege the allegations contained in Paragraphs "1" through "31" herein as if more fully set forth at length.
33. At the aforementioned time and place, the Plaintiffs were battered by defendants without any provocation on the part of the Plaintiffs as the Plaintiffs were handcuffed causing pain as they were too tightly secured. The Plaintiffs were refused covid prevention masks; In addition, the Plaintiff Mark V. Cheatham was refused his medication after advising the defendants that he was in pain;
34. As a result of the aforementioned, the Plaintiffs sustained personal injury, emotional trauma, feared for their lives sustained other consequential damages.
35. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
36. As a result of the foregoing, the Plaintiffs have been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SIXTH CAUSE OF ACTION-INVASION OF PRIVACY:

37. Plaintiffs repeat, reiterate and re-allege the allegations contained in Paragraphs "1" through "36" herein as if more fully set forth at length:
38. The aforementioned occurrence constituted an invasion of the privacy of the Plaintiffs.

39. As a result of the foregoing, the Plaintiffs sustained personal injury, emotional trauma, feared for their lives, and sustained other consequential damages.
40. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein
41. As a result of the foregoing, each Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SEVENTH CAUSE OF ACTION-CIVIL RIGHTS VIOLATION:

42. Plaintiffs repeat, reiterate and re-allege the allegations contained in Paragraphs "1" through "41" herein as if more fully set forth at length:
43. As a result of the aforementioned occurrence, the Plaintiffs were deprived of their civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances statutes, codes and rules, including but not limited to 42 USC §1981, §1983, §1985 and 28 USC § 1343. Defendants arrested and incarcerated the Plaintiffs in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiffs' liberty, well being, safety and constitutional rights.
44. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department., all under the supervision of ranking officers of said

department.

46. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a) fabricating evidence against innocent persons erroneously arrested
- b) arresting innocent persons wrongfully apprehended
- c) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing

47. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct as documented in the following civil rights actions filed against the City of New York:

Frank Douglas v. City of New York., United States District Court Southern District of New York, 03 CV 6475;

Darnell Flood v. City of New York, United States District Court Southern District of New York. 03 CV 10313;

Theodore Richardson v. City of New York. et al, United States District Court, Eastern District of New York, 02 CV 3651;

Phillip Stewart v. City of New York, United States District Court, Southern District of New York, 05 CV 2375;

Benjamin Taylor v. City of New York. United States District Court. Eastern District of New York, 01 CV 5750;

Angel Vasquez v. City of New York, United States District Court, Eastern District of New York, 05 CV 3552;

Alvin Williams v. City of New York., United States District Court, Southern District of New York. 05 CV 4013:

Terrence Burton v. City of New York, United States District Court, District of New York, 06 CV 6884.

48. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety', well-being and constitutional rights of Plaintiffs.
49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations as alleged herein.
50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.
51. As result of the foregoing custom, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, Plaintiffs were incarcerated unlawfully for approximately six (7) hours.
52. Defendants, collectively and individually, while acting under color of State Law, were directly and actively involved in violating the constitutional rights of Plaintiffs.
53. Defendants, collectively and individually, while acting under color of State Law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiffs' constitutional rights.
54. All of the foregoing acts by the defendants deprived the Plaintiffs of federally protected rights, including but not limited to:

A. Not to be deprived of liberty without due process of law.

- B. To be free from seizure and arrest not based upon probable cause.
- C. To be free from unwarranted and malicious criminal prosecution.
- D. Not to have cruel and unusual punishment imposed upon him/her; and
- E. To receive equal protection under the law.

- 55. The Plaintiffs intend to seek punitive damages on all counts.
- 56. As a result of the foregoing, the Plaintiffs suffered personal injury, emotional trauma, feared for their lives, and sustained other consequential damages.
- 57. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
- 58. As a result of the foregoing, the Plaintiffs each have been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

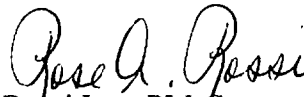
EIGHTH CAUSE OF ACTION-NEGLIGENCE

- 59. Plaintiffs repeat, reiterate and re-allege the allegations contained in Paragraphs "1" through "58" herein as if more fully set forth at length:
- 60. The aforementioned occurrence took place by reason of the negligence of defendants, its agents, servants and/or employees, including various police officers.
- 61. As a result of the foregoing, Plaintiffs suffered emotional trauma, feared for their, sustained other consequential damages.
- 62. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
- 63. As a result of the foregoing, Plaintiffs, each have been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

WHEREFORE, the Plaintiff, Mark V. Cheatham, seeks damages in each cause of action, in a sum within the jurisdictional limits of The Supreme Court of the State of New York and in excess of the jurisdictional limits of all inferior Courts on each cause of action; and

WHEREFORE, the Plaintiff, Atasha Johnson, seeks damages in each cause of action, in a sum within the jurisdictional limits of The Supreme Court of the State of New York and in excess of the jurisdictional limits of all inferior Courts on each cause of action.

Dated: Bronx, New York
December 9, 2021


Rossi Law PLLC
Attorneys for Plaintiffs
180 South Broadway, Suite 200
White Plains, New York 10605
(914) 358-9755

VERIFICATION

STATE OF NEW YORK)

SS:

COUNTY OF WESTCHESTER)

I, being duly sworn, depose and say:

That I am the attorney of record for the Plaintiffs in the within action;

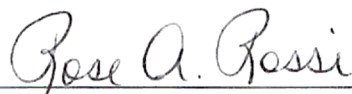
I have read the foregoing Summons and Complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters stated to be alleged on information and belief, and as to those matters I believe it to be true.

The reason this verification is made by me and not by Plaintiffs, is that they reside in a county other than that in which your deponent maintains her office.

The grounds for my belief as to tall matters not stated upon my own knowledge are as follows: numerous conversations with Plaintiffs and a review of my file.

I affirm the foregoing statements are true, under the penalties of perjury.

Affirmed this 2nd day
Of February 2022



Rose A. Rossi

SUPREME COURT
STATE OF NEW YORK, COUNTY OF NEW YORK

Index No.

MARK V. CHEATHEM and ATASHA JOHNSON,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. OMAR COLLADO,
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the names being fictitious as same are not known**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

ROSSI LAW PLLC

Attorney(s) for Plaintiffs

Office and Post Office Address, Telephone

*180 So. Broadway, Suite 200
White Plains, NY 10605
(914) 358-9755
RoseRossiLaw@gmail.com*

To

**Service of a copy of the within
is hereby admitted.**

Dated: _____, 19.....

Attorney(s) for

PLEASE TAKE NOTICE:

0 NOTICE OF ENTRY

that the within is a *(certified) true copy of a*
duly entered in the office of the clerk of the within named court on

19

0 NOTICE OF SETTLEMENT

**that an order
will be presented for settlement to the HON.
within named Court, at**

**of which the within is a true copy
one of the judges of the**

on _____ 19 _____ at _____ M.

Dated,

Yours, etc.

ROSE A. ROSSI